

Law of contracts meat and final exams from Tinsae forum



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~~Must be done~~ ~~3x100~~

Section A

3x100

~~Excluded~~

Law of Contract Mid-Exam Time Allowed 1 hour | 2021

1. "All contracts are agreements while all agreements may not be a contract". Comment the validity or otherwise of this assertion. 8%

A
The assertion is valid because contracts are agreements but all agreements may not be a contract. As stated in the civil code Article 1680 All Agreements must contain the Agreement of the parties. So contracts without Agreement it is impossible and all contracts are Agreements whereas not all Agreements are a contract. Because some Agreements may be mere declaration of intention so mere declaration of intention is not a contract. For example the domestic and social Agreements may not be a contract because the Agreement is not legally bounded rather it may be moral bounded. A mere declaration of intention that is bounded by moral obligation only is not a contract. So all contracts are Agreements but not all Agreements are contracts.

2. Determine the scopes of application of the general contract stipulations for relationships arising out of other categories of laws. 8%

7
The stipulations of general contract are applicable to contracts regardless of the nature thereof and parties thereof (Art 1676(1)) and also this stipulations applicable to obligations or relationships arising out of non-contractual relationships. This also state in the civil code Art 1677(1).

Matching (1.5% each)

- | | |
|---|---------------------------------------|
| <u>E</u> 1. Minor deviation of the contract | A. Payment to unqualified person |
| <u>C</u> 2. Void contract | B. Minority |
| <u>B</u> 3. Voidable contract | C. non-performance |
| <u>I</u> 4. Mode of expressing consent | D. Written form |
| <u>J</u> 5. Identity of the person | E. Lack of Registration |
| <u>H</u> 6. Doubt as to the creditor | F. Sale or lease contract |
| <u>G</u> 7. Reinstatement | G. Invalidation |
| <u>F</u> 8. Nature of the contract | H. Depositing the amount in the court |
| <u>A</u> 9. Annulled certificate of heir | I. Offer and acceptance |
| <u>D</u> 10. Contract of guarantee | J. Ground for voidable contract |

Bonus (5%)

Tariku Gankisi, a singer has now reckoned as one of the most popular artist owing from his music *Dishta Gina* preaching for love, solidarity, brotherhood and oneness. Considering this popularity *Demera* band has been agreed to invite him in a concert and the artist has also agreed to perform his popular music *Dishta Gina* for the people in Addis Ababa. In return the band has been agreed to pay Tariku 30,000 Ethiopian birr. However, days before the kickoff of the concert Tariku send a letter stating "I will not perform in the alleged concern since the very preparation of the program has ethnic motive". Accordingly, he expressly notices them as he could not perform the contract.

1. Do you think the court can order the artist to perform the contract as agreed if such allegation is brought to its attention? If your answer is "no" what will be the fate of the band?

I. Answer the following questions by saying true or false. 2 marks each

- True 1. According to Ethiopian law personality rights necessarily begins with birth T
 True 2. Almost all rights of personality have exceptions True
 True 3. Sometimes there might be legitimate discrimination among human beings on the enjoyment of personality rights
 False 4. Artificial persons do not have the right to sue and to be sued F
 False 5. Any physical person has a right to unconditionally dispose his body part without restriction.

Section two; Essay Part

- 3 1. All Human beings have the right to exercise rights and duties of personality starting from birth. Comment on the validity or otherwise of this statement in light of Ethiopian civil code and other relevant laws. 10 marks.

Ethiopian civil code of Article 1 states personality ^{right} is acquired at the time of birth and ends at the time of death which do not want any interpretation because it's clear and easy to understand it's important to see the meaning of both before anything birth is the total extrusion of a child from his mother womb into separate existence & start to breathe independently it also include the cut of umbilical cord. If depending on this one child will get or can get personality rights and duties at the time of birth unless the law says the validity. At the time of succession it's different a conceived child might get personality tentatively and will get it permanently at the time of birth and after his viability checked but in the case of exercising rights and duties the child may not exercise it until he is capable.

Section three: hypothetical Case Part

2. Kebede who was in a legal marriage with Chaltu died of car accident on may 10/2012 E.C. without having an offspring. At the time of Kebede's death he had a beautiful left house for his family. On may 6 2013 E.C Chaltu (who was in another marriage with Abebe for the last five months) give birth to a baby boy. The newly born baby was seriously ill because of which Doctors guess he may not survive for forty eight hours unless extra support is given for him. However, a day after his birth, Shewaye who is Chaltu's servant dropped the baby on the floor causing the baby to die immediately. Following the death of the boy, Chaltu claimed to take the succession right (on Kebede's house) of her son since her son has got a right of personality before he died. On the other hand the parents of Kebede claim the right to take the property of Kebede alleging that the baby didn't get right of personality. Answer the following questions. 17 marks/

- a) Argue for Chaltu assuming that you are the lawyer of Chaltu. 6 marks

the child can get personality even if he died before the 48 hours because Ethiopian ~~civil~~ civil code states under Art 4 sub Art 3 the child cause of death is external factor which is caused by the servant of Chaltu even if he had not survive for 48 hours b/c of his illness which is stated by the doctor but this ~~the~~ medical statement have a probability what if the baby survive by fighting his illness so we have it is better to see the now existing cause which is the external factor ~~that~~ so the baby have the right to get personality also the ~~succession~~ property however the baby is not alive so Chaltu who is closest relative of the baby have the right to get the property

may 10, 1
may 6

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2
because even if she not in a relationship when the baby is conceived Kebede her recent husband is not there when she get pregnant or she didn't entered into relationship with him at the time the only man she knows her died husband. Kebede and she is didn't get the chance to get in other relationship because of her sorrow from losing her husband.

the contractual document to determine the true mind of the contracting parties at the time of entering into the contract.

1. Assuming you are the presiding judge entertaining this allegation how would you interpret the contract? In particular among the guidelines provided in the civil code which of them do you think are best suited for this dispute? 6%

First I used Good Faith According to Art 1732 mekides and Ephrame made a contract to be benefited. But not Ephrame seem to sound Pollute, Second, The contract ^{Art 1736(1)} Party Intention when we see the intention of the Party there is a problem or defect in the object or nature of contract mekides want to enter lease contract Ephrame and the like But it is land sell contract But it is the land sell contract. Ephrame enters into the contract by good faith in Art 1732 and alone contracting party (mekides) cannot be benefited two time due to this case, of sound pollution, she must first know about the contract before entered according to Art 1736(2) mekides Reservation and Restriction cannot be applicable. therefore, due to the above reason the contract is valid. continuous to produce the flour, it is interpreted due to Art 1738.

Essay type Questions (18 points)

1. Do you think registration is a mandatory requirement for the validity of sales contract on immovable property? Address the two lines of arguments revolving around and the current legal stand adopted regarding it. 6%

According to Ethiopian civil code Article 1723(1) stated that A contract creating or assigning rights ownership or lease ownership on an immovable like house or sale of immovable shall be writing and registered with the court or notary, and Article 2878 the sale of an immovable shall not affect the 3rd parties unless it has been registered in the registers of immovable property in the place where the immovable sold is situate and Article 2722. So according to the above provision registration one of a requirement for the sale of immovable to be valid and it is to be indicate the requirement of the 3rd party interest. The major purpose is to keep the 3rd party, users of this and to confidence the buyers to have a sense of full ownership unless of this registration is not a mandatory. The written form is enough to it is Validation.

110

ID 1204422 Hailu Demisew Section A

Law of Contract I Final Exam for 2nd Year Law students, Time allowed 2:40 | 2021

* Support your argument with relevant stipulations of the civil code.

Hypothetical case one (12 points)

40/50

Mameni and Melkamu are friends living in Dilla town from their childhood. They have had learned together. Mameni has been graduated from Mekelle University studying public administration and management. Although, not successful in the academic arena Melkamu is running a good deals of business. At September 2019 few months after graduation Mameni has employed in one of the public procurement office at Dilla town. The office as part of its normal function provides abattoir service (supplying fresh meats to the consumers and retailers). Meanwhile, Melkamu, primarily engages in supplying beef types buying them from the remote parts of the country. One day the two childhood friends meet at delight hotel to celebrate their togetherness and strengthen their friendships. At the moment Mameni suggest Melkamu on the behalf of his office to supply beef types to his government organization. In the meantime, Melkamu, welcomed this golden opportunity and immediately confirm his friend's idea. Accordingly, they agree a contract orally in that Melkamu from January 1 2020 onward would supply beef types daily to Dilla town public procurement office in return Mameni, on the behalf of his office agreed to pay 500,000 birr through the Bank of Abyssinia account of the supplier in the next day as a performance of the six-month price of the thing to be supplied. Accordingly, Mameni sent the said birr to the suppliers account. In return Melkamu, is undertaking his contractual obligation of supplying beef. Two months after the conclusion of the contract officials from the procurement office starts to question the very validity of the contract. In the main time they heard that there are second year law students taking the course law of contract. Hoping legal advice from you officials representing the procurement office have approached you to obtain genuine legal advice.

1. Do you think there is a valid contractual relationship between Melkamu and Dilla town public procurement office? Why or why not? 6%

6 According to Civil Code Article 1724, Any contract binding the Government or a public administration shall be written and registered with a court. Public Administration, when we see the case or Hypothetical case The contract has made by the oral



Bahir Dar University
School of Law

2013 1st Semester Midterm Examination for Regular Students

Department: Law

Time Allowed: _1 hrs_

Course Title: _Law of Persons_ Course Code: _

General Instructions

- This exam paper contains three question types, multiple choices and essay types. Attempt all questions.
- Putting answers by writing beyond the space provided will result in reduction of marks. No material except tax law legislations and oxford dictionaries is allowed in the exam room.
- Cheating and an attempt to cheat will be treated according to the rules and regulations of the university.
- Examinees are required to write their ID numbers only
- You need to buttress your arguments and answers with relevant legal provisions when appropriate

Prepared by: Mulugeta Akalu

*** Remark: Do Not Turn Until You Are Allowed To Do So!!**

Section

The court decide by considering all situations the court consider that

Art 1792 The debtor shall inform the other party of the reason which prevents him from performing his obligation in the case Tarku did this if he did not this notice to them he will be liable as non-performance and liable to for any damage caused to the band or but Tarku made this notice away before and the band may lose damage

Cheers! It's The End!

before that if this happen Tarku may liable to pay for the damage of the band but he is not obliged to perform because he has good cause and notice non-performance then day before.

Best of Luck!

3. "A juridical act concluded by a person with lessened capacity in excess of his power void." State the validity of this assertion. Why or why not? (4%)

Further A juridical act concluded by a person with lessened capacity void or not
As per Article 989 of our ~~code~~ revised family code this act is void because from the beginning the act is forbidden by the law, and also the act have no existence B/c he/she is understand the importance of the action and the consequence. The above discussion also applies for juridical act perform by ~~some~~ notorious insane in bad faith.

4. Explain briefly the concept of Capacity and Lessened capacity. (5%)

Capacity is the ability to perform juridical act with out restriction. As a matter of principle everyone presumed to have capacity. But capacity is also the ability to exercise acts related civil or person al matters. ~~capacity is a legal concept~~ capacity is never at fault, which means capacity may be restricted by the law. That is why we call lessened capacity. It is a disability of a person to perform juridical act. It is declared by law, why? B/c the law has duty to preserve the citizen from prejudicial act which affect individuals. Because a person declared incapable by law is not understand the action and consequence of that action. ~~when not that about the disability~~ (e.g. for minor and Juicibility interdicts), For the person interdicted by law it is for the purpose of enforcement of the law B/c a person commit criminal act.

1409522

PART I. ESSAY TYPE QUESTION.

1. What is person? What is personality? Discuss the ways of acquisition of personality and state the conditions, if any, under the Ethiopian Law of Person. (15%)

Person is "refer to Birth, Viability, and existence person."

Personality is the right to have a right and duties of whether Physical or Artificial Person. Our civil code states that with old and consideration with born alive, viable, intelligent so requires like personality by Birth, Art (1) that means any person is subject to right

and from the commencement of his birth or when the child able to be felt. The second circumstance is when the child is in his mother's open pregnant have arising to set his personality. But there are criteria which follow to set personality:
 (1) born. His interest sovereigns which mean the duties that he get from that personality not exceed his benefit. (2) born alive: the child must born alive live born dead have not right to set.
 (3) viable: The child has a potentiality to live for at least to 48 hours, this have exception if the child is dead by external factor no she is still have personality. Art (1), Art (2) and 4,

2. List and discuss the protections of Name. (6%)

Name is the identification of a person.
 (1) Right of name under Article 45 no one have a right to use his name for causing prejudice or by means of harmful confusion or to the good or reputation of third party.
 Ex: if some one use his reputation to raise and it is prohibited by law.

(2) Protection of name under Article 46(1) no one is allowed to use another name if the protection is the same and likely cause material and moral damage.

Example: If I am a single and use the name of today after for set reputation the law is not allow me to exercise such action for the sake of today after.

3?

5. Discuss and contrast the grounds and effects of "Insanity that is NOT notorious", "Notorious insanity" and "Judicial Interdiction". (10 %)

The ground for not notorious insanity is being insufficiently developed or mental disease or unable to understand the importance of his action with them the person who are insane is free in mind, dangerous. As indicated in AR 339 sub 1 and 2. Whereas the ground for notorious insanity is the person's mental condition, he is insane in hospital or an institution of insane person or at private home, but only for the time being ~~remains~~ remains an inmate. When we come to the ground for Judicial Intervention, as we know the purpose of law is to protect the people from acts that affect the individuals. For the sake of the person who are insane and his interest and health so long as require the court may pronounce the intervention as per article 351 sub (1) (2) (3). When we come to the effect of the three: Insanity that is not notorious, the effect is that when a person who are insane but not notorious enter ~~into~~ ^{into} judicial act is valid unless he proves that he was not in a condition to give a consent free from defect. In addition to this heirs, representatives have not right to annulment of such judicial act AR 347 sub 1 and 2 and 348. Notorious insanity Judicial act performed by a notorious insane person is may be applied by heirs or representatives AR 347 (1). He is liable for the act he commit extra contractually AR 348 sub 1. At all the judicial act is not valid unless the third party is good faith AR 348. Judicial Interventions. It is the effect that prohibit insane person from doing overall activities ~~and~~ that affects his health and his interest not only interest but also presumptive heirs of the insane person.

- 19
- B. It can be established without obtaining the consent of the guarantor and the creditor.
 - C. It cannot be established in the absence of a principal legal or contractual obligation and it normally dies concomitant to the death of the principal obligation.
 - D. It is an obligation imposed by the law to insure security of transactions with a view to enhance confidence of the contracting parties.
 - E. It remains valid even after the extinction of the principal obligation which necessitated the creation of the contract of surety.

A 5. Which one of the following statement is correct?

- A. The fate of earnest given in respect of invalid contract is not clearly provided under our law
- B. Parties can extend their or limit their liability for nonperformance unconditionally
- C. Sometimes amount of guaranty that is made for future conditional obligation may not be required to be fixed in advance due to its difficulty
- D. Extension of period of limitation even beyond the maximum limit maybe tolerated so long as it is in line with the essence of the contract.
- E. A & D

III. Essay type

1. Unlike the French and German legal systems which provides the presumption of non-solidary obligation among co-debtors, the Ethiopian civil code takes the presumption that unless otherwise agreed or provided by law, as a matter of principle co-debtors are jointly and severally liable and the creditor may demand one or all the debtors to discharge the obligation in whole or in part. Likewise, under article 1907 while dealing with the share of co-debtors in the debt, it says that unless otherwise agreed or provided by law each co-debtor shall share equally in payment made to the creditor. So can one of the co-debtors defend himself to be held liable for his own share as per this article? If yes how? If not then what is the purpose of article 1907? (8%)

8 The purpose of Art 1907 in our civil code is not to say one of the co-debtors defend himself to be held liable for his own share rather to settle the dispute arising after the payment is made to the creditor there may be some sort of conflict between the debtors after payment is made to the creditor one debtor gets less or more share of the debt if no agreement or provided by law the debtors share equally in payment made to the creditor Art 1907 says

2. Compare and contrast suretyship with other institutions? (7%)

7 ① Suretyship vs Real Suretyship. The former is based on personhood while the latter is based on object. For the person who is liable for the debt, in the former institution a pledge of suretyship is made.

Very Good!
Thank you!

Bahir Dar University

School of Law

Law of contracts mid exam (25%)

Target group: 2nd Year II semester Regular Law Students

Academic Year 2015 E.C

Instructions:

Instructor: Essubalew M.

- > Please write **only your ID number** in the space provided in each edge of the pages.
- > This is closed book exam except laws.
- > Please write your answers only on the space provided.
- > Your answer should be **to the point** and support your argument with relevant legal provisions and cassation decisions, doing the otherwise will costs you mark
- > Do not restate facts
- > Avoid verbosity
- > **Please write your answer in a readable manner**
- > Time allowed: Max-1:20 hours
- > Do not turn the page until you are told to do so by your invigilator

ID NUMBER 1409552 SECTION 2

I. True or False

True 1. Potestative condition is a condition that depends on fortuitous circumstance and it is not possible to provide such condition under our law.

False 2. The solvency of debtor during formation of suretyship contract is prerequisite under our law.

False 3. The liability of simple joint debtors can never be greater than their share in the debt.

II. Choose the best answer

C 4. In Ethiopia, a contract of surety is an accessory obligation because:

A. Of the presence of plurality of guarantors.

10

The Form is Unilateral while the latter is bilateral. Assurance becomes effective when some event happens on the insured's side. Surety is a part of the debt and pay Ar 1920. Warranty vs Surety: Warranty is a part of security in transactions. Surety is a 3rd person involvement while Surety is a 2nd person involvement. Three parties: Warranty increases the confidence of the buyer while Surety increases the creditor confidence.

Quiz

I. Case (10%)

Ato Ashagre agreed to sell his Ox to Ato Gizachew (who is also an owner of one Ox) on suspensive condition that the sale contract will be effected as soon as Ato Gizachew's Ox dies. After hearing this fact, Jembere, who is in conflict with Ato Gizachew for political reason, maliciously and in bad faith killed Ato Gizachew's Ox thereby making the sale contract between the parties effective from that day on. Consequently, Ato Ashagre totally refused to deliver the Ox and Ato Gizachew brought the case before the court of law.

A. Present possible defenses available for Ato Ashagre, if any? (3%)

As per the civil code, there is no clear defense available for Ato Ashagre. But by analogy, Jembere's act is a crime. His claim may be Ar 1870. By saying the reason, the Ox is killed by someone in the manner contrary to the law, the Ox is killed by Jembere. But not in a manner so I have not duty to perform the claim.

B. Defenses available for Ato Gizachew? (3%)

As per Ar 1871, so long as there is no contrary agreement the condition shall be effective. From the day the condition is fulfilled, the contract shall be effective. If the Ox is killed by Jembere, the condition is fulfilled. The court should decide in favour of Ato Gizachew.

C. What would be your decision had you been the judge? (4%)

As there is no law that settles this type of situation, my decision is not far from the defence given by Ato Gizachew. If there is no contrary agreement between the parties, my decision will be in favour of Ato Gizachew who is not in contrary to good faith. He has not acted in a way that comes into effect when condition is fulfilled. By whatever means the condition is fulfilled, but not in contrary to good faith. My decision had been only Ato Ashagre to deliver the Ox to Ato Gizachew, per Ar 1871.

SECTION I : CHOOSE THE BEST ALTERNATIVE. (2 Mark For Each)

1. Which one of the following merger extinguishes the obligation of suretyship?
 - A. Merger of the debtor and creditor ✓
 - B. Merger of the creditor and surety
 - C. Merger of debtor and surety
 - D. All of the above merger extinguish obligation of suretyship
2. An action taken by the creditor, upon the authorization of court, to prevent impoverishment of the debtor which otherwise jeopardizes the creditor's right to payment is _____.
 - A. Actio Pauliana
 - B. Oblique Action ✓
 - C. Preservatory Measure
 - D. Attachment of the debtor's asset
3. Which one of the following juridical acts is not within the scope of application of the Ethiopian law of contract?
 - A. Conditional contract.
 - B. Contract involving earnest.
 - C. Adoption agreement.
 - D. Marriage contract.
 - E. A and C. ✓
4. Under the Ethiopian law of contracts, assignment of obligatory rights
 - A. Is the same as stipulation of a beneficiary in all respects. ✓
 - B. May be made gratuitously in which case the assignor is not obliged to guarantee the existence of the right. ✓
 - C. Can be made for consideration though the assignor is not required to guarantee the existence of the right at the time of the assignment.
 - D. Is not possible as it violates the principle of privity of contract which is the nucleus of the Ethiopian law of contract?
 - E. Is made before the conclusion of the contract to be assigned to the beneficiary.
5. What is the status of oath under the Civil Code of Ethiopia in relation to proof of contracts?
 - A. It is used to prove contracts that need to be made in writing provided that the document establishing the contract was lost.
 - B. Because the moral standards of the people of Ethiopia have been greatly eroded, oath does not have any significance to prove a contract in Ethiopia today. ✓
 - C. It is a useful tool to rebut the presumption of payments incorporated in the Ethiopian Civil Code. ✓

ID: 1204422

Ato Zemenu and Ato Zerabiruk (Z Squares) are best friends since childhood. They enrolled to kindergarten and primary school education together. For your surprise they both passed the National University Entrance Examination and they joined Bahir Dar University College of Business and Economics (COBE) in 2009 and they studied and graduated with Bachelor of accounting and finance. Zemenu and Zerabiruk have been employed at Raya Kobo Woreda First Instance Court Procurement and finance working department as Procurement officer and Daily Income Collector respectively. When they got employed they requested to have surety and Zemenu brought his sisters Belaynesh as guarantor and Zerabiruk also brought his brother Berihun as guarantor. Belaynesh signed for suretyship of maximum of 100,000 ETB for Zemenu and Berihun signed maximum of 80,000 ETB for Zerabiruk.

In the meantime Ato Zerabiruk got a new job as Customer Assistant I Position at AXIS Bank and he resigns from his job and joined AXIS Bank. The concerned organ is posting a vacancy notice to fill the position of Mr. Zerabiruk.

One day Ato Zewdu (Mr Zemenu's boss) called Zemenu and ordered him to work on Zerabiruk's position in addition to his Procurement officer position. Following this he started to work as both Procurement Officer and Daily Income Collector. After 2 months Zemenu lost around 80,000 ETB (2 days) daily income collected. On that the Woreda Public prosecutor brings a suit against Zemenu to reimburse the money. But he has nothing which covers 80,000 ETB. The prosecutor again brings the suit against Belaynesh to recover the lost money during B.

1. What would be your defense if you were attorney of Ms. Belaynesh? (10 Mark)
2. What could be your argument if you were the prosecutor who brings the suit?

(8 Mark)

→ Assume that Amhara National Regional State has a regulation regarding Guarantees of civil servants. Article 12 of the Regulation reads:-

- Whenever there is a variation of Contract of employment of the civil servant, the concerned organ or employer shall immediately notified the guarantor about the variation.

- 19
- B. It can be established without obtaining the consent of the guarantor and the creditor.
 - ☒ C. It cannot be established in the absence of a principal legal or contractual obligation and it normally dies concomitant to the death of the principal obligation.
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2. Compare and contrast suretyship with other institutions? (7%)

7 1. Suretyship vs Real Security The former is based on personhood while the latter is based on object. For the person who is liable for the debt in the former institution and liable in the latter institution.

Very Good!
Thank you!

6+17+10
=33

Bahir Dar University

School of Law

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ID NUMBER 1409552 SECTION 2

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False 2. The solvency of debtor during formation of suretyship contract is prerequisite under our law.

False 3. The liability of simple joint debtors can never be greater than their share in the debt.

II. Choose the best answer

C 4. In Ethiopia, a contract of surety is an accessory obligation because:

A. Of the presence of plurality of guarantors.

10

The former is ^{collateral} ^{subsidary} ^{dependent on} ^{the principal contract} Unilateral while the latter is Bilateral. Assurance becomes effective when some event happens on the insured's side. Suretying becomes effective when the debtor ^{has} not paid. ^{AR 1920} Warranty vs Suretying: Warranty is a part of security in transactions. ^{had} ^{no 3rd person involvement} While Suretying is ^{involvement} ^{three parties} ^{warranty} ^{increase} the confidence of the buyer while Suretying increase the creditor confidence.

Quiz

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A. Present possible defenses available for Ato Ashagre, if any? (3%)

2. ~~As per the civil code there is no clear defense available for Ato Ashagre~~
 But by analogy of ^{involvement} ^{his claim} ^{may be} ^{Ar 1870} ^{by saying} ^{to the} ^{fault}
 the reason, the Ox is killed by someone in the manner contrary to the
 Ox is killed by man but not in manner so I have not duty to
 perform the claim.

B. Defenses available for Ato Gizachew? (3%)

3. ~~As per Ar 1871, so long as there is no contrary agreement the~~
 contract shall be effective from the day the condition is fulfilled. ^{so} ^{Ato Gizachew}
 defense will be there if killed by someone not within the scope of Ar 1871, 1870. ^{So}
 the court should decide in favour of Ato Gizachew.

C. What would be your decision had you been the judge? (4%)

4. ^{new rule 1871, 1870}
 As there is no ^{that} ^{type of} ^{scenario} ⁱⁿ ^{my} ^{decision} ^{is} ^{not}
 far from the defence given by Gizachew ^{if} ^{there} ^{is} ^a ^{contrary} ^{agreement}
 between them, my decision will be in favour of Ato Gizachew who
 is not in contrary to good faith and he has not ^{allegedly} ^{that} ^{comes} ^{into}
 effect when condition fulfilled ^{by} ^{whatever} ^{means} ^{the} ^{condition} ^{is} ^{fulfilled}
 But not in contrary to good faith. ^{my} ^{decision} ^{had} ^{been}
 only Ato Ashagre to deliver the Ox to Ato Gizachew ^{per} ¹⁸⁷¹.